

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PORTION OF THE NW¼ OF SECTION 21, T.14N., R.66W. OF THE 6TH P.M., LARAMIE COUNTY, WYOMING, TO BE KNOWN AS THE BLUFFS, 10TH FILING ANNEXATION (LOCATED BETWEEN CONVERSE AVENUE AND CRESTRIDGE DRIVE, NORTH OF FOOTHILLS ROAD).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That United Western Corporation, owner of parcels of land being situated in a portion of the NW1/4 of Section 21, T.14N., R.66W. of the 6th P.M., Laramie County, Wyoming, has petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffery B. Jones, a Professional Land Surveyor, registered in the State of Wyoming, PLS Number 5910; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned LR – Low Density Residential – by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING:_____

SECOND READING:_____

THIRD AND FINAL READING:_____

RICHARD L. KAYSEN, MAYOR

(SEAL)

CAROL INTLEKOFER, CITY CLERK

published:_____

ANNEXATION REPORT & STAFF REPORT

The Bluffs, 10th Filing Annexation Summation

Annexation

CASE NUMBER: UDC-14-00482

FILE CODE: TBA-AP

PUBLIC HEARING: November 24, 2014

REQUIRED

DOCUMENTS: All required documents have been submitted and reviewed by staff.

- Complete Application
- Petition signed by property owner
- Annexation Map
- Soils report (deferred to time of development)
- Signed clearance from Board of Public Utilities

RECOMMENDATION: Staff recommends adoption of the ordinance.

ANNEXATION REPORT & STAFF REPORT

The Bluffs, 10th Filing Annexation

Annexation

CASE NUMBER: UDC-14-00482 **FILE CODE:** TBA-AP

OWNER: United Western Corporation (current owner)
2200 Dell Range Blvd. Ste 100
Cheyenne, WY 82009

AGENT: Same as owner 307-634-4577

REQUEST: Annexation to the City of Cheyenne

LOCATION:

1) Legal Description: A portion of the NW1/4 of Section 21, T.14N., R.66W. of the 6th P.M., Laramie County, Wyoming

2) General Location: Located between Converse Avenue and Crestridge Drive, north of Foothills Road.

3) Address: Vacant land

SIZE: 14.26 acres

CURRENT ZONING: LR, Low-Density Residential (County)

PROPOSED ZONING: MR-2, Medium-Density Residential-Developing

EXISTING LAND USE: Vacant land

PROPOSED LAND USE: Single Family Residential

SURROUNDING LAND USES:

DIRECTION	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Residential	LR	County
South	Residential	LR-2	City
East	Residential	LR	County
West	Residential and Public	LR & P	County/City

SUMMARY:

The City has received a petition to annex a parcel of land totaling 14.26± acres, located between Converse Avenue and Crestridge Drive, north of Foothills Road.

Wyoming State Statutes require that prior to annexing territory to the City certain steps must be followed, including the governing body conducting a public hearing and finding that the territory is eligible for annexation. The statutes list six criteria that must be met for the territory to be eligible for annexation. The attached ordinance finds compliance with these six criteria and annexes the land into the City, allowing the annexation map to be recorded. Staff recommends adoption of the ordinance.

DESCRIPTION OF SITE AND SURROUNDINGS:

The subject property is contiguous to City of Cheyenne jurisdictional boundaries on the south and west sides of the parcel and is within the Urban Service Boundary. The property slopes to the south as the development approaches Council Bluff; vegetation includes native grasses and shrubs. Currently there are no sewer or water utilities in place to serve the property. The property owner will be required to extend the sewer and water main utilities to the property upon development.



Annexed area denoted by dashed line.



Facing the subject property looking east.

The surrounding area contains primarily medium-density single-family residences. Anderson Elementary is located to the southwest of the property and the new Meadowlark Elementary school will be built north of Storey and east of Chief Washakie. At build out, the owner proposes to develop the parcel with single-family lots, with the majority of lots ranging in size from 7,000 to 9,000 square feet in area. In addition to the annexation, the proposal requires consideration of a zoning designation and a Final Plat. The Preliminary Plat is currently being considered.

COMPREHENSIVE PLAN:

LAND-USE AND ZONING: The property is within the Urban Service Boundary. The Future Land Use Plan map in PlanCheyenne indicates Urban Residential for this property and the surrounding vacant land, which is primarily appropriate for single-family residences, duplexes, patio homes, townhomes, condominiums, and apartments. Secondary and complementary uses include open space and recreation, schools, places of worship, and other public or civic uses, senior housing, and neighborhood commercial if it complies with the characteristics of Neighborhood Business Centers (*PlanCheyenne*, 2014).

ANNEXATION ELIGIBILITY DATA/ANALYSIS:

Before any territory is eligible for annexation, the governing body must find that the following criteria are met (W.S. § 15-1-402 (a)):

- 1) "An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town." **Findings:** Ensuring development connects to City sewer rather than utilizing septic systems promotes public health for area residents. Likewise, having development served by City police serves the public safety and welfare of area residents.
- 2) "The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town." **Findings:** The property abuts existing City limits on two sides. The site is located within the PlanCheyenne comprehensive plan area and planned for urban services expansion.
- 3) "The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to the residents of the city or town shall, within reason, be available to the area proposed to be annexed." **Findings:** The area sought to be annexed is planned for urban services expansion in numerous City planning documents including PlanCheyenne and the Board of Public Utilities master plan. The City's water and sewer system has capacity to serve this area. Development will be required to include extension of water lines, stormwater lines, and street improvements. Services customarily available to residents in Cheyenne will be available to the subject property.
- 4) "The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. § 15-1-407." **Findings:** The property is approximately 36% contiguous with existing City limits.
- 5) "If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. § 15-1-410." **Findings:** Franchises are in place to serve this property.
- 6) "The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. § 15-1-405(a)." **Findings:** The required information was sent October 24, 2014.

ANNEXATION REPORT DATA:

In compliance with W.S. § 15-1-402 (c) the following information is provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. § 15-3-202 (b) (ii).

- (ii) The total estimated cost of infrastructure improvements required of the landowners by the City related to the annexation is approximately \$0.00. All improvements are deferred until time of development.
- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. As mentioned previously, a sewer line is in place to serve the property and extension of water lines will be required at the time of development. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner. Police and fire protection will be provided upon annexation.
- (iv) Fees for water, sewer, and sanitation services are variable based upon volume. Tap fees vary based on the size of the tap required.
- (v) The current property tax mill levy imposed is 66.00 and projected property tax mill levy imposed by the city is 71.00.
- (vi) Requirements for off-site improvements will be evaluated at the time of development.

REVIEWING AGENCY AND REVIEWERS COMMENTS:

City Surveyor: (Note: These comments will be addressed with a revised map.)

1. The Title Block should be amended to read that this is an annexation of a "PORTION" of the Bluffs 10th Filing, since other portions of that plat in process are already annexed.
2. Legal description in the Title Block appears correctly.
3. The boundary data provided on the map closes mathematically, and appears in order when compared to the plat data provided for The Bluffs 10th Filing.
4. In the LAND DESCRIPTION there is one dimensional discrepancy found. From the Northwesterly corner of this annexation, traversing to the East, the map shows this dimension as 653.80 feet, and this closes mathematically. However, in the LAND DESCRIPTION this dimension appears as 593.80 feet, which does not close mathematically with the other boundary data provided. This correction is required.

Engineering:

The City Engineer's Office is amenable to postponing submittal of the final soils report until such time as detailed construction plans are submitted for the public infrastructure.

Traffic Engineering: (Note: The following comments relate to future development.)

Off-site Improvements (ref Municipal Code 1.16.040):

A. The developer must agree to install all required off-site improvements associated with lands that are the subject of development action. All off-site improvements installed or to be installed shall be subject to the approval by the City as to the plans and specifications and as to compliance with the inspection procedures and schedules determined by the City.

B. Off-site improvements include:

1. Water mains with connecting lines to the then available supply;
2. Sewer mains and appurtenances extended to the farthest point up-grade in the respective lines of the development;
3. Curb and gutter for any platted streets within the area;
4. Paved streets within the described area connecting to the most nearly adjacent paved traffic route.
5. Paved alleys as platted within the subdivision;
6. Flood control and drainage systems to include such elements as storm sewers, above ground and underground drainage facilities, detention and holding facilities, and other related drainage structures;
7. Other facilities as determined by the City Engineer.

City-County Environmental Health:

Laramie County Small Wastewater System Regulations

201 Area Facilities Management Plan

This annexation is consistent with the Laramie County Small Wastewater System Regulations and the 201 Area Facilities Management Plan.

City Clerk: (Note: These comments will be addressed with a revised map.)

The length of the long tangent on the north side of the annexed parcel is given as 653.80' on the map and 593.80' in the land description. The omission or inclusion difference appears to be the width of the Point Bluff ROW.

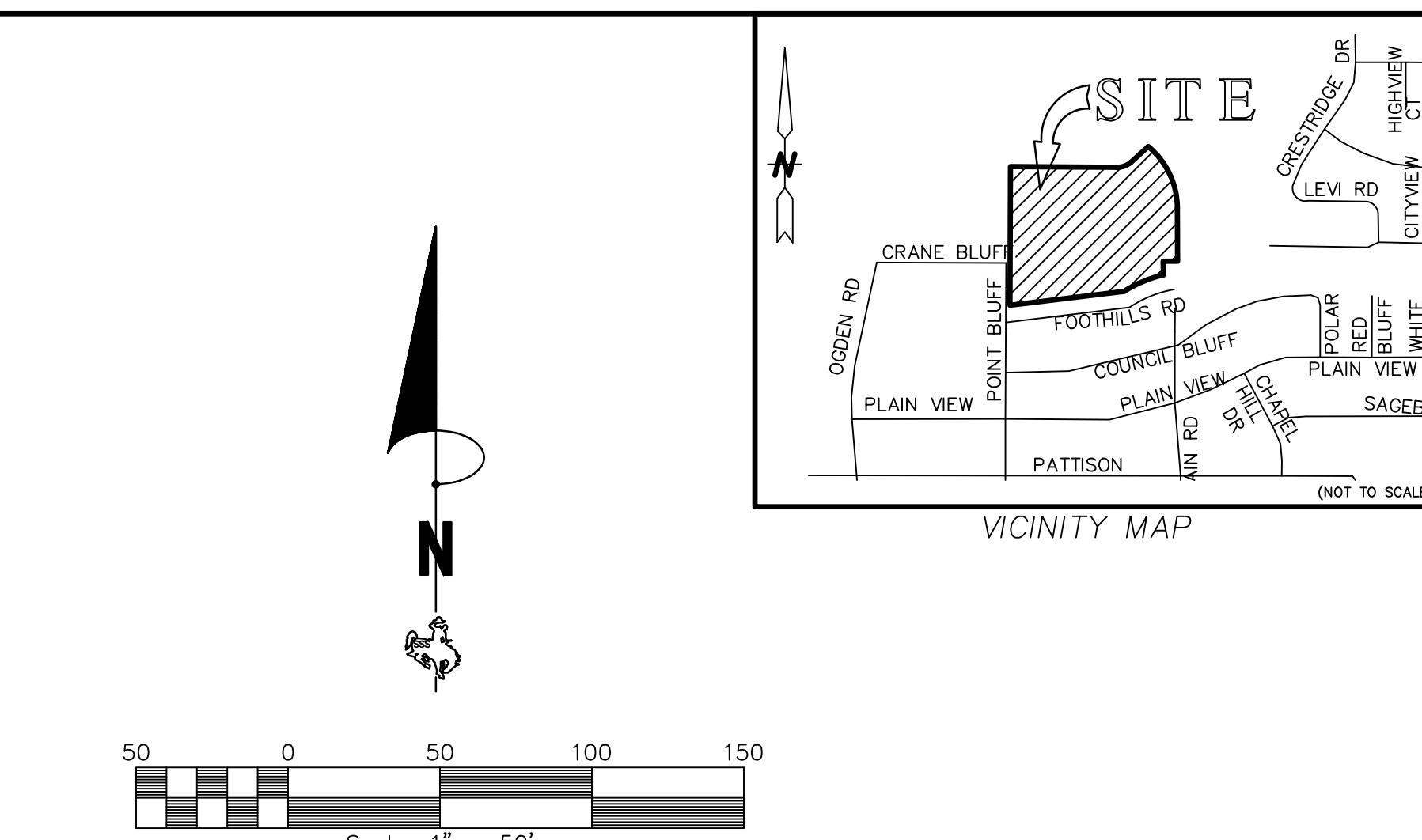
AGENCIES RESPONDING WITHOUT COMMENT: BOPU, Charter Communications, City Attorney, County Assessor, Drainage Engineering, Engineering Tech/GIS, Fire Department, School District #1, MPO, Parks & Rec., Urban Planning, WYDOT.

AGENCIES NOT RESPONDING: CenturyLink, Cheyenne Light, Fuel & Power, City Engineer, County Attorney, County Clerk, Laramie County Fire District #2, County Planning, County Public Works, County Sheriff, High West Energy, Laramie County Conservation District, Police, Public Works.

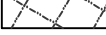
OTHER COMMENTS RECEIVED: None.

Encl: Annexation Ordinance
Annexation Map

cc: Agent and Owner
File



NOTES

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| <ul style="list-style-type: none"> ○ SET 3" X 24" LONG REBAR WITH 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 2500" ● FOUND 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 2500" ○ FOUND BRASS CAP △ CITY OF CHEYENNE CONTROL MONUMENT ○ SET 3" X 24" LONG REBAR WITH 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" | <ul style="list-style-type: none"> 1. BASIS OF BEARINGS – CITY OF CHEYENNE DATUM REFERENCED FROM CITY CONTROL MONUMENTS "RIDGE" & "DELL RANGE 3". 2. NO PORTION OF THE SUBJECT PROPERTY FALLS WITHIN SPECIAL 100-YEAR SPECIAL FLOOD HAZARD AREA AS SHOWN ON SPECIAL PANEL NO.56021C1091F, DATED JANUARY 17, 2007. 3. WATER AND SEWER TO BE PROVIDED BY CITY OF CHEYENNE BOPU. 4. ALL UTILITIES TO BE PROVIDED IN ADJACENT RIGHT-OF-WAY. 5. NEAREST FIRE HYDRANT ±160 FEET SOUTHWEST OF PARCEL AT THE WEST CORNER OF FOOTHILLS ROAD AND POINT BLUFF. 6. CURRENT INCORPORATED CITY LANDS ABOUT APPROXIMATELY 36% OF THE 3202.6' PARCEL PERIMETER. |
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| <ul style="list-style-type: none">     | <ul style="list-style-type: none"> AREA TO BE ANNEXED OTHER LANDS CURRENTLY IN ANNEXATION PROCESS OTHER LANDS CURRENTLY OUTSIDE OF THE CITY OF CHEYENNE CORPORATE LIMITS (COUNTY) LANDS CURRENTLY INCORPORATED WITHIN THE CITY OF CHEYENNE CORPORATE LIMITS |
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A portion of the Northwest Quarter (NW¼) of Section 21, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, more particularly described as follows:

[illegible]

Approved by the Council of the City of Cheyenne, Wyoming this ____ day
of _____, 2014.

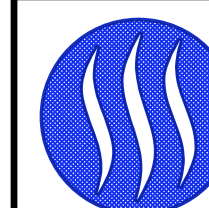
Mayor

ATTEST: _____
City Clerk

I, Jeffrey B. Jones, Registered Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

SITUATED IN A PORTION OF THE NW¼
OF SECTION 21, T.14N., R.66W., OF THE 6TH P.M.,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING.

PREPARED SEPTEMBER, 2014



STEEL SURVEYING SERVICES, LLC
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CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C5	37° 38' 27"	440.00'	S19° 05' 30"E	283.89'	289.06'
C6	42° 28' 49"	111.46'	N69° 06' 24"E	80.76'	82.64'